

The Tripura Children Act, 1982

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State of Tripura - Act

The Tripura Children Act, 1982

TRIPURA

India

The Tripura Children Act, 1982

Act 7 of 1983

Published on 26 July 1983

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The Tripura Children Act, 1982

(Act

No. 7 of 1983

)

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An Act to provide for the care, protection, maintenance, welfare, training, education and rehabilitation of neglected or delinquent children and for the trial of delinquent children in the State of Tripura.

Be it enacted by the Legislative Assembly of Tripura in the thirty-third year of the Republic of India as follows:

Chapter I

Preliminary

1.

Short title, extent and commencement.

(1)

This Act may be called the Tripura Children Act, 1982.

(2)

It extends to the whole of the State of Tripura.

(3)

It shall come into force on such date as the State Government may, by notification in the official Gazette, appoint and different dates may be appointed for different provisions of this Act or different areas of the State.

2.

Definitions.

(1)

In this Act, unless the context otherwise requires,-

(a)

"begging" means-

(i)

soliciting or receiving alms in a public place or entering on any private premises for the purpose of soliciting or receiving alms whether under the pretence of singing, dancing, fortune-telling, performing tricks or selling articles or otherwise;

(ii)

exposing or exhibiting, with the object of obtaining or extorting alms, any sore, wounds, injury, deformity or disease, whether of himself or of any other person or of an animal;

(iii)

allowing oneself to be used as an exhibit for the purpose of soliciting or receiving alms;

(b)

"Board" means the Child Welfare Board constituted under Section 3;

(c)

"brothel", "prostitute", "prostitution" and "public place" shall have the meanings respectively assigned to them in the Suppression of Immoral Traffic in Women and Girls Act, 1956 (104 of 1956);

(d)

"child" means a boy who has not attained the age of eighteen years or a girl who has not attained the age of sixteen years;

(e)

"Children's Court" means a court constituted under Section 4;

(f)

"Children's Home-cum-Observation Home" means an institution established or certified by the State Government under Section 8 as a Children's Home-cum-Observation Home;

(g)

"competent authority" means, in relation to neglected children, the Board constituted under Section 3 and, in relation to delinquent children a Children's Court constituted under Section 4, and where no such Board or Children's Court has been constituted, includes any court empowered under sub-section (2) of Section 6, to exercise the powers conferred on the Board or Children's Court;

(h)

"dangerous drug" shall have the meaning assigned to it in the Dangerous Drugs Act, 1930 (2 of 1930);

(i)

"delinquent child" means a child who has been found to have committed an offence;

(j)

"fit person" or "fit institution" means any person or institution (not being a police station or jail) found fit by the competent authority to receive and take care of a child entrusted to him of its care and protection on the terms and conditions specified by the competent authority;

(k)

"guardian" in relation to a child, includes any person who, in the opinion of the competent authority having cognizance of any proceeding in relation to a child, has, for the time being, the actual charge of or control over, that child;

(l)

"neglected child" means a child who-

(i)

is found begging; or

(ii)

is found without having any home or settled place of abode or any ostensible means of subsistence or is found destitute, whether he is an orphan or not; or

(iii)

has a parent or guardian who is unfit or unable to exercise or does not exercise proper care and control over the child; or

(iv)

lives in a brothel or with a prostitute or frequently goes to any place used for the purpose of prostitution, or is found to associate with any other person who leads an immoral, drunken or depraved life;

(m)

"offence" means an offence punishable under any law for the time being in force;

(n)

"place of safety" means any place or institution (not being a police station or jail) the persons in charge of which is willing temporarily to receive and take care of a child and which in the opinion of the competent authority may be a place of safety for the child;

(o)

"prescribed" means prescribed by rules made under this Act;

(p)

"Probation Officer" means an officer appointed as a Probation Officer under this Act or under the Probation of Offenders Act, 1958 (20 of 1958);

(q)

"special school" means an institution established or certified by the State Government under Section 9;

(r)

"supervision" in relation to a child placed under the age of any parent or guardian or other fit person or fit institution under this Act, means the supervision of that child by a Probation Officer for the purpose of ensuring that the child is properly looked after and that the conditions imposed by the competent authority are complied with;

(s)

all words and expressions used but not defined in this Act and defined in the Code of Criminal Procedure, 1973 (Act 2 of 1974) shall have the meanings assigned to them in that Code.

Chapter II

Competent Authorities and Institutions for Children

3.

Child Welfare Board.

(1)

The State Government may, by notification in the official Gazette constitute a Child Welfare Board for exercising the powers and discharging the duties conferred or imposed on the Board in relation to neglected children under this Act.

(2)

The Board shall consist of a Chairman and such other members as the State Government thinks fit to appoint, of whom not less than one shall be a woman; and every such member shall be vested with the powers of a Judicial Magistrate under the Code of Criminal Procedure, 1973 (Act 2 of 1974).

(3)

The Board shall function as a Bench of Magistrate and shall have the powers conferred by the Code of Criminal Procedure, 1973 (Act 2 of 1974) on a Judicial Magistrate of the first class.

4.

Children's Court.

(1)

Notwithstanding anything contained in the Code of Criminal Procedure, 1973 (Act 2 of 1974) the State Government may by notification in the official Gazette, constitute for any area specified in the notification, one or more Children's Court for exercising the powers and discharging the duties conferred or imposed on such court in relation to delinquent children under this Act.

(2)

A Children's Court shall consist of such number of Judicial Magistrates forming a Bench as the State Government thinks fit to appoint, one of whom shall be designated as the senior Judicial Magistrate/Sub-Divisional Magistrate; and every such Bench shall have the powers conferred by the Code of Criminal Procedure, 1973 (Act 2 of 1974) on a Judicial Magistrate of the first class.

(3)

Every Children's Court shall be assisted by a panel of two social workers drawn from either the voluntary social welfare organisations or from the Government organisations possessing such qualifications as may be prescribed, of whom at least one shall be a woman and such panel shall be appointed by the State Government;

5.

Procedure in relation to Board and Children's Courts.

(1)

In the event of any difference of opinion among the members of the Board or among the Judicial Magistrates of a Children's Court, the opinion of the majority shall prevail, but where there is no such majority, the opinion of the Chairman or of the Senior Judicial Magistrate, as the case may be, shall prevail.

(2)

A Board or Children's Court may act notwithstanding the absence of any member of the Board or, as the case may be, any Judicial Magistrate of the Children's Court, and no order made by the Board or Children's Court shall be invalid by reason only of the absence of any member or Judicial Magistrate, as the case may be, during any stage of the proceeding.

(3)

No person shall be appointed as a member of the Board or as a Judicial Magistrate in the children's court unless he has, in the opinion of the State Government, special knowledge of child psychology and child welfare.

6.

Powers of the Board and Children's Court.

- Where the Board or a Children Court has been constituted for any area such Board or court shall, notwithstanding anything contained in any other law for the time being in force but save as otherwise expressly provided in this Act, have power to deal exclusively with all proceedings under this Act relating to neglected children or delinquent children, as the case may be:

Provided that a Board or a Children's Court may, if it is of opinion that it is necessary so to do having regard to the circumstances of the case, transfer any proceedings to any Children's Court or Board as the case may be:

Provided further that where there is any difference Of opinion between a Board and a Children's Court regarding the transfer of any proceedings under the first proviso, it shall be referred to the Chief Judicial Magistrate of the District for decision and in a case where the District Magistrate is functioning as Chairman or a Member of the Board or, as the case may be, where the Chief Judicial Magistrate is functioning as a member of the Children's Court, such difference of opinion shall be referred to the Court of Session, and the decision of the Chief Judicial Magistrate or, as the case may be, the Court of Sessions, on such reference shall be final.

(2)

(a)

Where no Board has been constituted for any area, the powers conferred on the Board by or under this Act shall be exercised in that area by the District Magistrate or the Sub-Divisional Magistrate as the State Government may appoint by notification in the official Gazette.

(b)

Where no Children's Court has been constituted for any area, the power conferred on the Children's court by or under this Act shall be exercised in the area by the Chief Judicial Magistrate or the Sub-Divisional Judicial Magistrate.

(3)

The powers conferred on the Board or Children's Court by or under this Act, may also be exercised by the High Court and the Court of Session, when the proceeding comes before them in appeal, revision or otherwise.

7.

Procedure to be followed by a Magistrate not empowered under this Act.

(1)

When a child is brought before the Judicial Magistrate or court not empowered to pass an order under this Act, such magistrate or such court shall forward the child to the competent authority having jurisdiction over the proceeding.

(2)

The competent authority to which the proceeding is forwarded under sub-section (1) shall hold the inquiry as if the child had originally been brought before it.

8.

Children's Home-cum-Observation Home.

(1)

The State Government may establish and maintain as many Children's Homes-cum-Observation Homes as may be necessary for the reception of neglected child or delinquent child, as the case may be, for the temporary reception of a child during the pendency of any inquiry regarding him under this Act.

(2)

Where the State Government is of opinion that any institution other than an institution established under sub-section (1) is fit for the reception of neglected child or for temporary reception of children during the pendency of any inquiry regarding them under this Act, or for reception of the neglected children to be sent there under this Act, it may certify such institution as a Children's Home-cum-Observation home for the purposes of this Act.

(3)

Every Children's Home-cum-Observation home to which child concerned is sent under this Act shall not only provide the child with accommodation, maintenance and facilities for education, medical examination and treatment, but also provide him, with facilities for useful occupation, development of his character and abilities and give him necessary training for protecting himself against moral danger or exploitation and shall also perform such other functions as may be prescribed to ensure all round growth and development of his personality.

(4)

The State Government may, by rules made under this Act provide for the management of Children Home-cum-Observation home, including the standard and nature of service to be maintained by them and the circumstances under which, and the manner in which, the certificate of a Children's Home-cum-Observation Home may be granted or withdrawn.

9.

Special Schools.

(1)

The State Government may establish and maintain as many special schools as may be necessary for the reception of delinquent children under this Act.

(2)

Where the State Government is of opinion that any institution other than an institution established under sub-section (1) is fit for the reception of the delinquent children to be sent there under this Act, it may certify such institution as a special school for the purposes of this Act.

(3)

Every special school to which a delinquent child is sent under this Act shall, not only provide the child with accommodations, maintenance and facilities for education but also provide him with facilities for the development of his character and abilities and give him necessary training for his reformation and shall also perform such other function as may be prescribed to ensure all round growth and development of his personality.

(4)

The State Government may, by rules made under this Act, provide for the management of special schools, including the standards and the nature of services to be maintained by them and the circumstances under which, and the manner in which, the certificate of a special school may be granted or withdrawn.

10.

After-care-Organisation-cum-Observation Home.

- The State Government may, by rules made under this Act, provide-

(a)

for the establishment of or recognition of After-care-Organisations and the powers that may be exercised by them for effectively carrying out their functions under this Act;

(b)

for a scheme of after-care-programme to be followed by such After-care-Organisations for the purpose of taking care of children after they leave Children's Home or Special Schools and for the purpose of enabling them to lead an honest, industrious and useful life;

(c)

for the preparation and submission of a report by the probation officer in respect of each child prior to his discharge from Children's Home-cum-Observation Home or special school, as the case may be, regarding the necessary and nature of after-care of such child, the period of such after-care supervision thereof and for the submission of a report by the probation officer on the progress of each child;

(d)

for the standards and the nature of service to be maintained by such After-care Organisations;

(e)

for such other matters as may be necessary for the purpose of effectively carrying out scheme of after-care programme of children.

Chapter III

Neglected Children

11.

Procedure of neglected child before the Board.

(1)

Any police officer or other person authorised by the State Government in this behalf may, if there are reasonable grounds to believe that a person is a neglected child, take charge of that person for bringing him before the Board.

(2)

When information is given to an officer in charge of a police station about any neglected child found within the limits of such station, he shall enter in a book to be kept for the purpose, the substance of such information and take such action thereon as he deems fit and if such officer does not propose to take charge of the child, he shall forward a copy of the entry made to the Board.

(3)

Every child taken charge of under sub-section (1) shall be brought before the Board within a period of twenty four hours of such charge taken excluding the time necessary for the journey from the place where the child had been taken charge of the Board.

(4)

Every child taken charge of under sub-section (1) shall, unless he is kept with his parent or guardian, be sent to a Children's Home-cum-Observation Home (but not to a police station or jail) until he can be brought before the Board.

12.

Special procedure to be followed which neglected child has parent.

(1)

If a person, who, in the opinion of the police officer or the authorised person, is a neglected child, has a parent or guardian who has the actual charge of or control over, the child, the police officer or the authorised person may, instead of taking charge of the child, make a report to the Board for initiating an inquiry regarding that child.

(2)

On receipt of a report under sub-section (1), the Board may call upon the parent or guardian to produce the child before it and to show cause why the child should not be dealt with as a neglected child under the provisions of this Act and if it appears to the Board that the child is likely to be removed from its jurisdiction or to be concealed, it may immediately order his removal (if necessary by issuing a search warrant for the immediate production of the child) to a Children's Home-cum-Observation Home or a place of safety.

13.

Inquiry by the Board regarding neglected children.

(1)

When a person alleged to be a neglected child is produced before the Board, it shall examine the police officer or the authorised person who brought the child or made the report and record the substance of such examination and hold the inquiry in the prescribed manner and may make such orders in relation to the child as it may deem fit.

(2)

Where the Board is satisfied on enquiry that a child is a neglected child and that it is expedient so to deal with him, the Board may make an order directing the child to be sent to a Children's Home-cum-Observation Home for the period until he ceases to be a child:

Provided that the Board may, for reasons to be recorded, extend the period of such stay, but in no case the period of stay shall extend beyond the time which the child attains the age of eighteen years, in the case of a boy, or twenty years, in the case of a girl;

Provided further that the Board may, if it is satisfied that having regard to the circumstances of the case it is expedient so to do, for reasons to be recorded, reduce the period of stay to such period as it thinks fit.

(3)

During the pendency of any inquiry regarding a child, the child shall unless he is kept with his parent or guardian, be sent to a Children's Home-cum-Observation Home or a place of safety for such period as may be specified in the order of the Board:

Provided that no child shall be kept with his parent or guardian, if in the opinion of the Board, such parent or guardian is unfit or unable to exercise or does not exercise proper care and control over the child.

14.

Power to commit neglected child to suitable custody.

(1)

If the Board so thinks fit, it may, instead of making an order under sub-section (2) of Section 13 make an order placing the child under the care of a parent or guardian or other fit person, on such parent, guardian or fit person executing a bond with or without surety to be responsible for the good behaviour and for observance of such conditions as the Board may think fit to impose.

(2)

At the time of making an order under sub-section (1) or at any time subsequently, the Board may, in addition, make an order that the child be placed under supervision for any period not exceeding three years in the first instance.

(3)

Notwithstanding anything contained in sub-section (1) or sub-(2), if at any time it appears to the Board, on receiving a report from the probation officer or otherwise, that there has been a breach of any of the conditions imposed by it in respect of the child, it may, after making such inquiry as it deems fit, order the child to be sent to a Children's Home-cum-Observation Home.

15.

Uncontrollable children.

- Where a parent or guardian of a child complains to the Board that he is not able to exercise proper care over the child and the Board is satisfied on inquiry that proceedings under this Act should be initiated regarding the child, it may send the child to a Children's Home-cum-Observation Home or a place of safety and make such further inquiry as it may deem fit and the provisions of Sections 13 and 14 shall, as far as may be, apply to such proceedings.

Chapter IV

Delinquent Children

16.

Bail and custody of children.

(1)

When any person accused of a bailable offence and apparently a child is arrested or detained or appears or is brought before a Children's Court such person shall, notwithstanding anything contained in the Code of Criminal Procedure, 1973 (Act 2 of 1974) or in any other law for the time being in force, be released on bail with or without surety but he shall not be so released if there appear reasonable grounds for believing that the release is likely to bring him into association with any reputed criminal or expose him to moral danger or that his release would defeat the ends of justice.

(2)

When such person having been arrested is not released on bail under sub-section (1) by the officer-in-charge of the police station, such officer shall cause him to be kept in a Children's Home-cum-Observation Home in the prescribed manner (but not in a police station or jail) until he can be brought before a Children's Court.

(3)

When such person is not released on bail under sub-section (1) by the Children's Court, it shall, instead of committing him to prison, make an order sending him to an Observation Home for such period during the pendency of the inquiry regarding him as may be specified in the order.

17.

Information to parent or guardian or probation officer.

- Where a child is arrested, the officer-in-charge of the police station to which the child is brought shall, as soon as may be after the arrest, inform-

(a)

the parent or guardian of the child, if he can be found, of such arrest and direct him to be present at the Children's Court before which the child will appear; and

(b)

the probation officer of such arrest in order to enable him to obtain information regarding the antecedents and family history of the child and other material circumstances likely to be of assistance to the Children's Court for making the inquiry.

18.

Inquiry by Children's Court regarding delinquent children.

- Where a child having been charged with an offence appears or is produced before a Children's Court, the Children's Court shall hold the inquiry in accordance with the provisions of Section 37 and may, subject to the provisions of this Act, make such order in relation to the child as it deems fit.

19.

Orders that may be passed regarding delinquent children.

(1)

Where a Children's Court is satisfied on inquiry that a child has committed an offence, then, notwithstanding anything to the contrary contained in any other law for the time being in force, the Children's Court may, if it so thinks fit,

(a)

allow the child to go home after advice or admonition;

(b)

direct the child to be released on probation of good conduct and placed under the case of any parent, guardian or other fit person on such parent, guardian or other fit person executing a bond, with or without surety as that court may require, for the good behaviour and well-being of the child for any period not exceeding three years;

(c)

make an order directing the child to be sent to a special school,-

(i)

in the case of a child over fourteen years of age, for a period of not less than three years:

(ii)

in the case of any other child, for the period until he ceases to be a child;

Provided that the Children's Court may, if it is satisfied that having regard to the nature of the offence and the circumstances of the case it is expedient so to do, for reasons to be recorded, reduce the period of stay to such period as it thinks fit:

Provided further that the Children's Court may, for reasons to be recorded, extend the period of such stay, but in no case the period of stay shall extend beyond the time when the child attains the age of eighteen years, in the case of a boy, or twenty years in the case of girl:

(d)

order the child to pay a fine if he is over fourteen years of age and earns money.

(2)

Where an order under Clause (b) or Clause (d) of sub-section (1) is made, the Children's Court may, if it is of opinion

that in the interests of the child and of the public it is expedient so to do, in addition make an order that the delinquent child shall remain under the supervision of a probation officer named in the order during such period, not exceeding three years, as may be specified therein, and may in supervision order impose such conditions as it deems necessary for the due supervision of the delinquent child:

Provided that if at any time afterwards it appears to the Children's Court on receiving a report from the probation officer or otherwise, that the delinquent child has not been of good behaviour during the period of supervision, it may, after making such inquiry as it deems fit, order the delinquent child to be sent to a special school.

(3)

The Children's Court making a supervision order under sub-section (2) shall explain to the child and the parent, guardian or other fit person, as the case may be, under whose care the child has been placed, the terms and conditions of the order and shall forthwith furnish one copy of the supervision order to the child, the parent, guardian or other fit person, as the case may be, the sureties, if any, and the probation officer.

(4)

In determining the special school, or any person to whose custody a child is to be committed or entrusted under this Act, the court shall pay due regard to the religious denomination of the child to ensure that religious instruction contrary to the religious persuasion of the child is not imparted to him.

20.

Orders that may not be passed against delinquent children.

(1)

Notwithstanding anything to the contrary contained in any other law for the time being in force, no delinquent child shall be sentenced to death or imprisonment, committed to prison in default of payment of fine or in default of furnishing security:

Provided that where a child who has attained the age of fourteen years has committed an offence and the Children's Court is satisfied that the offence committed is of so serious a nature or that his conduct and behaviour have been such that it would not be in his interest or in the interest of other children in a special school to send him to such special school and that none of the other measures provided under this Act is suitable or sufficient, the Children's Court may order the delinquent child to be kept in safe custody in such place and manner as it thinks fit and shall report the case for the orders of the State Government.

(2)

On receipt of a report from a Children's Court under sub-section (1) the State Government may make such arrangement in respect of the child as it deems proper and may order such delinquent child to be detained at such place and on such conditions as it thinks fit:

Provided that the period of detention so ordered shall not exceed the maximum period of imprisonment to which the child could have been sentenced for the offence committed.

21.

Proceedings under Chapter VIII of the Criminal Procedure code not competent against child.

- Notwithstanding anything to the contrary contained in this Code of Criminal Procedure, 1973 (Act 2 of 1974), no proceedings shall be instituted and no order shall be passed against a child under Chapter VIII of the said Code.

22.

No joint trial of child and person not a child.

(1)

Notwithstanding anything contained in Section 223 of the Code of Criminal Procedure, 1973 (Act 2 of 1974), or in any other law for the time being in force, in child shall be charged with or tried for any offence together with a person who is not a child.

(2)

Where a child and any person who is not a child are accused of an offence for which under Section 223, of the Code of Criminal Procedure, 1973 (Act 2 of 1974) or any other law for the time being in force, they would but for the prohibition contained in sub-section (1) be charged and tried together, the court taking cognizance of that offence shall direct separate trials for the child and the other person.

23.

Removal of disqualification attaching to conviction.

- Notwithstanding anything contained in any other law, a child who has committed an offence and has been dealt with under the provisions of this Act shall not suffer disqualification, if any, attaching to a conviction of an offence under such law.

24.

Special provision in respect of pending cases.

- Notwithstanding anything contained in this Act, all proceedings in respect of a child pending in any court in any area on the date on which this Act comes into force in that area, shall be continued in that court as if this Act has not been passed and if the court finds that the child has committed an offence, it shall record such finding and, instead of passing any sentence in respect of the child, forward the child to the Children's Court which shall pass orders in respect of that child in accordance with the provisions of this Act as if it has been satisfied on inquiry under this Act that the child has committed the offence.

Chapter V

Procedure of Competent Authorities Generally and Appeals and Revisions from Orders of such Courts

25.

Sitting etc. of Boards and Children's Court.

(1)

The Board or a children court shall hold its sittings at such place, on such day and in such manner, as may be prescribed.

(2)

The authority empowered to exercise the powers of the Board or, as the case may be, a children's court under sub-section (2) of Section 6 shall, while holding any inquiry regarding a child under this Act, as far as practicable, sit in a building or room different from that in which the ordinary sittings of civil and criminal courts are held, or on different days or at times different from those at which the ordinary sittings of such courts are held.

26.

Persons who may be present before competent authority.

(1)

Save as provided in this Act, no person shall be present at any sitting of a competent authority, except-

(a)

any officer of the competent authority, or

(b)

the parties to the inquiry before the competent authority, the parent or guardian of the child and other persons directly concerned in the inquiry including police officers and legal practitioners, and

(c)

such other persons as the competent authority may permit to be present.

(2)

Notwithstanding anything contained in sub-section (1), if at any stage during an inquiry a competent authority considers it to be expedient in the interest of the child or on grounds of decency or morality that any person including the police officers, legal practitioners, the parent, guardian or the child himself should withdraw, the competent authority may give such direction, and if any person refuses to comply with such direction, the competent authority may have him removed and may, for this purpose, cause to be used such force as may be necessary.

(3)

No legal practitioner shall be entitled to appear before the Board in any case or proceedings before it, except with the special permission of the Board.

27.

Prohibition of publication of names etc. of children involved in any proceeding under the Act.

(1)

No report in any newspaper, magazine or news sheet of any inquiry regarding a child under this Act shall disclose the name, address or school or any other particulars calculated to lead to the identification of such child, nor shall any picture of any such child be published:

Provided that for reasons to be recorded in writing the authority holding the inquiry may permit such disclosure, if in its opinion such disclosure is in the interest of the child.

(2)

Any person contravening the provisions of sub-section (1) shall be punishable with fine which may extend to one thousand rupees.

28.

Dispensing with attendance of child.

- If at any stage during the course of an inquiry, a competent authority is satisfied that the attendance of the child is not essential for the purpose of the inquiry the competent authority may dispense with his attendance and proceed with the inquiry in the absence of the child.

29.

Attendance of parent or guardian of child.

(1)

Any competent authority before which a child is brought under any of the provisions of this Act may, whenever it so thinks fit, require any parent or guardian having the actual charge of or control over the child to be present at any proceeding in respect of the child.

(2)

The attendance of the parent or guardian of the child may be dispensed with by the competent authority under this section in any case where the child was removed from the custody or charge of the parent or guardian as the case may be before the proceeding has been started by an order of the competent authority.

30.

Committal to approved place of child suffering from dangerous disease and its future disposal.

(1)

When a child who has been brought before a competent authority under this Act is found to be suffering from a disease requiring prolonged medical treatment or physical or mental complaint that will respond to treatment, the competent authority may send the child to any place recognised to be an approved place in accordance with the rules made under this Act for such period as it may think necessary for the required treatment.

(2)

Where a child is found to be suffering from leprosy or is of unsound mind, he shall be dealt with under the provisions of the Lepers Act, 1898 (3 of 1898), or the Indian Lunacy Act, 1912 (4 of 1912), as the case may be.

(3)

Where a competent authority has taken action under sub-section (1) in the case of a child suffering from an infectious or contagious disease, the competent authority before restoring the said child to his partner in marriage, or their has been such, or to the guardian, as the case may be, shall where it is satisfied that such action will be in the interest of the said child call upon his partner in marriage or the guardian, as the case may be, to satisfy the court by submitting to medical examination that such partner or guardian will not re-infect the child in respect of whom the order has been passed.

31.

Presumption and determination of age.

(1)

Whenever any person is brought before a competent authority under any of the provisions of this Act as a child the competent authority shall make due inquiry as to the age of that person and after taking such evidence as may be necessary, record a finding whether the person is a child or not stating his age as nearly as may be. The age so found by the competent authority shall, for the purposes of this Act, be deemed to be the true age of such person.

(2)

No order of a competent authority shall be deemed to have become invalid merely by any subsequent proof that the person in respect of whom the order has been made is not a child.

32.

Circumstances to be taken into consideration in making orders under the Act.

- In making any order in respect of a child under this Act, a competent authority shall take into consideration the following circumstances, namely:

(a)

the age of the child;

(b)

the circumstances in which the child is living;

(c)

the reports made by the probation officer;

(d)

the religious persuasion of the child;

(e)

such other circumstances as may, in the opinion of the competent authority, require to be taken into consideration in the interests of the child;

Provided that in the case of a delinquent child, the above circumstances shall be taken into consideration after the children's court has recorded a finding against the child that he has committed the offence:

Provided further that if no report of the probation officer is received within ten weeks of his being informed under Section 17, it shall be open to the children's court to proceed without it.

33.

Sending a child outside jurisdiction.

- In the case of a neglected or delinquent child whose ordinary place of residence lies outside the jurisdiction of the competent authority before which he is brought, the competent authority may, if satisfied after due inquiry that it is expedient so to do, send the child back to a relative or other person who is fit and willing to receive him at his ordinary place of residence and exercise proper care and control over him, notwithstanding that such place of residence is outside the jurisdiction of the competent authority; and the competent authority exercising jurisdiction over the place to which the child is sent shall in respect of any matter arising subsequently have the same powers in relation to the child as if the original order had been passed by itself.

34.

Reports of the probation officer to be treated as confidential.

- The report of the probation officer or any circumstances considered by the competent authority under Section 32 shall be treated as confidential;

Provided that the competent authority may, if it so thinks fit, communicate the substance thereof to the child or his parent or guardian and may give such child, parents or guardian an opportunity of producing such evidence as may be relevant to the matter stated in the report.

Chapter VI

Appeal and Revision

35.

Appeals.

(1)

Subject to the provisions of this section, any person aggrieved by an order made by a competent authority under this Act may, within thirty days from the date of such order, prefer an appeal to the court of session:

Provided that the court of session may entertain the appeal after the expiry of the said period of thirty days if it is satisfied that the appellant was prevented by sufficient cause from filing the appeal in time.

(2)

No appeal shall lie from-

(a)

any order of acquittal made by the children's court in respect of a child alleged to have committed an offence; or

(b)

any order made by the Board in respect of a finding that a person is not a neglected child.

(3)

No second appeal shall lie from any order of the court of session passed in appeal under this section.

36.

Revision.

- The High Court may, at any time, either on its own motion or on an application received in this behalf call for the record of any proceeding in which any competent authority or court of session has passed an order for the purpose of satisfying itself as to the legality or propriety of any such order and may pass such order in relation thereto as it thinks fit;

Provided that the High Court shall not pass an order under this section prejudicial to any person without giving him a

reasonable opportunity of being heard.

37.

Procedure in queries, appeals and revision proceedings.

(1)

Save as otherwise expressly provided by this Act, a competent authority while holding any inquiry under any of the provisions of this Act, shall follow such procedure as may be prescribed and subject thereof, shall follow, as far as may be, the procedure laid down in the Code of Criminal Procedure, 1973 (Act 2 of 1974) for trials of summons cases.

(2)

Save as otherwise expressly provided by or under this Act, the procedure to be followed in hearing appeal or revision proceedings under this Act shall be, as far as practicable, in accordance with the provisions of the Code of Criminal Procedure, 1973 (Act 2 of 1974).

38.

Power to amend orders.

(1)

Without prejudice to the provisions for appeal and revision under this Act, any competent authority may, either on its own motion or on an application received in this behalf, amend any order as to the institution to which a child is to be sent or as to the person under whose care or supervision a child is to be placed under this Act.

(2)

Clerical mistakes in order passed by a competent authority or errors arising therein from any accidental slip or omission may, at any time, be corrected by the competent authority either on its own motion or on an application received in this behalf.

Chapter VII

Special Offences in Respect of Children

39.

Punishment for cruelty to child.

(1)

Whoever, having the actual charge of, or control over, a child assaults, abandons, exposes or wilfully neglects the child or causes or procures him to be assaulted, abandoned, exposed or neglected in a manner likely to cause such child unnecessary mental and physical suffering shall be punishable with imprisonment for a term which may extend to six months, or with fine, or with both:

Provided that in the case of married children the children's court trying the offence under this section may sanction its composition for reasons to be recorded in writing.

(2)

The infliction of reasonable punishment by parent or guardian having the actual charge of a child for proper training, protecting himself against moral dangers or exploitation, and to ensure growth and development of his personality shall not be deemed to be an offence under this section.

(3)

No court shall take cognizance of an offence punishable under sub-section (1) makes the complaint is filed with the previous sanction of the State Government or an officer authorised by it in this behalf.

40.

Employment of children for begging.

(1)

Whoever employs or uses any child for the purposes of begging or cause any child to beg shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

(2)

Whoever, having the actual charge of, or control over a child, abets the commission of the offence punishable under sub-section (1), shall be punishable with imprisonment for a term which may extend to one year, or with fine, or with both.

(3)

The offence punishable under this section shall be cognizable.

41.

Penalty for giving intoxicating liquor or dangerous drug to a child.

- Whoever gives, or causes to be given to any child any intoxicating liquor in a public place or any dangerous drug, except upon the order of a duly qualified medical practitioner or in case of sickness or other urgent cause, shall be punishable with fine which may extend to two hundred rupees.

42.

Exploitation of child employees.

- Whoever ostensibly procures a child for the purpose of any employment and withholds the earnings of the child or uses such earnings for his own purposes shall be punishable with fine which may extend to one thousand rupees.

43.

Penalty for being drunk while incharge of a child.

- If any person is found drunk in any street or public place while having charge of a child, and if such person is incapable by reason of his drunkenness of taking due care of the child, such person shall on conviction, be punishable with fine which may extend to two hundred rupees.

Chapter VIII

Miscellaneous

44.

Continuation of inquiry in respect of child who has ceased to be child.

- Where an inquiry has been initiated against a child and during the course of such inquiry the child ceases to be such, then, notwithstanding anything contained in this Act or in any other law for the time being in force, the inquiry be continued and orders may be made in respect of such person as if such person had continued to be a child.

45.

Power of State Government to discharge and transfer children.

(1)

The State Government may, notwithstanding anything contained in this Act, at any time, order a neglected or delinquent child to be discharged from the children's home-cum-observation home or special school, either absolutely or on such conditions as it may think fit to impose.

(2)

The State Government may, notwithstanding anything contained in this Act, order-

(a)

a neglected child to be transferred from a children's home-cum-observation home to another;

(b)

a delinquent child to be transferred from one special school to another; or from a special school to a children's home-cum-observation home;

(c)

a child who has been released on license which has been revoked or forfeited, to be sent to the special school or children's home-cum-observation home from which he was released or to any other children's home-cum-observation home or special school:

Provided that the total period of the stay of the child in a children's home-cum-observation home or special school shall not be increased by reason of such transfer.

(3)

The State Government may, notwithstanding anything contained in this Act, at any time, discharge a child from the care of any person under whom he has been placed under this Act either absolutely or on such conditions as the State Government may think fit to impose.

46.

Transfers between children's homes, etc., under the Act, and children's homes etc. of like nature in different parts of India.

(1)

The State Government may, direct any neglected child or delinquent child to be transferred from any children's home-cum-observation home or special school within the State to any other children's home-cum-observation home, special school or institution of a like nature in any other State with the consent of the Government of that State.

(2)

The State Government may, by general or special order, provide for the reception in a children's home-cum-observation home or special school within the State of a neglected child or delinquent child detailed in a children's home-cum-observation home or special school or institution of a like nature in any other State. Where the Government of the State makes an order for such transfer, upon such transfer the provisions of this Act shall apply to such child as if he had been originally ordered to be sent to such children's home-cum-observation home or special school under this Act.

47.

Transfer of children suffering from leprosy, tuberculosis or unsoundness of mind.

(1)

If in the opinion of the medical officer authorised by the State Government a child kept in a special school or children's home-cum-observation home in pursuance of this Act is suffering from leprosy, tuberculosis or unsoundness of mind the State Government may order his removal to a suitable hospital or other place for being kept there for such period as may be necessary for the proper treatment of the child.

(2)

Where in the opinion of the medical officer authorised by the State Government such a child is cured the State Government may order the person having charge of the child to send him to the special school or children's home-cum-observation home from which he was removed or, if the child is no longer liable to be kept in custody, order him to be discharged.

48.

Placing out of licence.

(1)

When a child is kept in a children's home-cum-observation home or special school, the State Government may, if it so thinks fit, release the child from the children's home-cum-observation home or special school and grant him a written licence for such period and on such conditions as may be specified in the licence permitting him to live with, or under the supervision of, any responsible person named in the licence willing to receive and take charge of him with a view to educate him and train him for some useful trade or calling.

(2)

Any licence so granted under sub-section (1) shall be in force for the period specified in the licence or until revoked or forfeited by the breach of any of the conditions on which it was granted whichever is earlier.

(3)

The State Government may, at any time, by order in writing revoke any such licence and order the child to return to the children's home-cum-observation home or special school from which he was released or to any other children's home-cum-observation home or special school, and shall do so at the desire of the person with whom or under whose supervision the child has been permitted to live in accordance with a licence granted under sub-section (1).

(4)

When a licence has been revoked or forfeited and the child refuses or fails to return to the special school or children's home-cum-observation home to which he was directed to return, the State Government may, if necessary, cause him to be taken charge of and to be taken back to the special school or children's home-cum-observation home.

(5)

The time during which a child is absent from a special school or children's home-cum-observation home in pursuance of a licence granted under this section shall be deemed to be part of the time for which he is liable to be kept in custody in the special school or children's home-cum-observation home;

Provided that when a child has failed to return to the special school or children's home-cum-observation home on the licence, being revoked or forfeited, the time which elapses after his failure so to return shall be excluded in computing the time during which he is liable to be kept in custody.

49.

Provision in respect of escaped children.

- Notwithstanding anything contained in the contrary contained in any other law for the time being in force, any police officer may take charge without warrant of a child who has escaped from a special school or a children's home-cum-observation home or from the care of a person under whom he was placed under this Act and shall send the child back to the special school or the children's home-cum-observation home or that person, as the case may be; and

no proceeding shall be instituted in respect of the child by reason of such escape but the special school, children's home-cum-observation home or the person may, after giving the information to the competent authority which passed the order in respect of the child, take such steps against the child as may be deemed necessary.

50.

Penalty for abetting escape of child or youthful offender.

(1)

Whoever-

(a)

knowingly assist or induces directly or indirectly a child to escape from the children's home-cum-observation home or special school or from the custody of the person under whom he is placed by an order under this Act; or

(b)

knowingly harbours, conceals or prevents from returning to such school or home or to such person a child who has so escaped or knowingly assists in doing so;

shall be punishable with imprisonment for a term which may extend to six months or with fine not exceeding five hundred rupees or with both.

(2)

All offences under sub-section (1) shall be cognizable.

51.

Contribution by parents.

(1)

The competent authority, which makes an order for sending a neglected child or a delinquent child to a children's home-cum-observation home or a special school or placing the child under the care of a fit person may make an order requiring the parent or other person liable to maintain the child to contribute to his maintenance if able to do so, in the prescribed manner.

(2)

The competent authority before making any order under sub-section (1) shall enquire into the circumstances of the parent or other person liable to maintain the child and shall record evidence, if any, in the presence of the parent or such other person, as the case may be.

(3)

The person liable to maintain a child shall for the purposes of sub-section (1) include, in the case of illegitimacy, his putative father:

Provided that where the child is illegitimate and an order for his maintenance has been made under Section 125 of the Code of Criminal Procedure, 1971 (Act 2 of 1974) the competent authority shall not ordinarily make an order for contribution against the putative father, but may order the whole or any part of the sums accruing due under the said order for maintenance to be paid to such person as may be named by the competent authority and such sum shall be paid by him towards the maintenance of the child.

(4)

Any order made under this section may be enforced in the same manner as an order under Section 125 of the Criminal Procedure, 1973 (Act 2 of 1974).

52.

Control of custodian over child.

- Any person in whose custody a child is placed in pursuance of this Act shall, while the order is in force, have the like control over the child as he would have if he were his parent, and shall be responsible for his maintenance, and the child shall continue in his custody for the period stated by the competent authority, notwithstanding that he is claimed by his parent or any other person:

Provided that no child while in such custody shall be married except with the permission of the competent authority.

53.

Delinquent child undergone sentence at the commencement of the Act.

- In any area in which this Act is brought into force, the State Government may direct that a delinquent child who is undergoing any sentence of imprisonment at the commencement of this Act shall, in lieu of undergoing such sentence, be sent to a special school or be kept in safe custody in such place and manner as the State Government thinks fit, for

the remainder of the period of the sentence; and the provisions of this Act shall apply to the child as if he had been ordered by a children's court to be sent to such special school or, as the case may be, ordered to be detained under sub-section (2) of Section 20.

54.

Appointment of officers.

(1)

The State Government may appoint as many probation officers, officers for the inspection of special school, children's home-cum-observation home or aftercare organisation and such other officers as it may deem necessary for carrying out the purposes of this Act.

(2)

It shall be the duty of the probation officer-

(a)

to inquire, in accordance with the direction of a competent authority, into the antecedents and family history of any child accused of an offence, with a view to assist the authority in making the inquiry;

(b)

to visit neglected and delinquent children at such intervals as the probation officer may think fit;

(c)

to report to the competent authority as to the behaviour of any neglected or delinquent child;

(d)

to advise and assist neglected or delinquent children and, if necessary, endeavour to find them suitable employment;

(e)

where a neglected or delinquent child is placed under the care of any person on certain conditions, to see whether such conditions are being complied with ; and

(f)

to perform such other duties as may be prescribed.

(3)

Any officer empowered in this behalf by the State Government may enter any special school, children's home-cum-observation home or aftercare organisation and make a complete inspection thereof in all its departments and of all papers, registers and accounts, relating thereto and shall submit the report of such inspection to the State Government.

55.

Officers, appointed under the Act to be public servants.

- Probation officers and other officer, appointed in pursuance of this Act shall be deemed to be public servants within the meaning of Section 21 of the Indian Penal Code, 1860 (Act 45 of 1860).

56.

Procedure in respect of bonds.

- The provisions of Chapter XXXII of the Code of Criminal Procedure, 1973 (Act 2 of 1974) shall, as far as may be, apply to bonds taken under this Act.

57.

Delegation of powers.

- The State Government may, by general or special order, direct that any power exercisable by it under this Act shall, in such circumstances and under such conditions, if any, as may be specified in the order, be exercisable also by an officer subordinate to it.

58.

Protection of action taken in good faith.

- No suit or other legal proceeding shall lie against the State Government or any probation officer or other officer appointed under this Act in respect of anything which is in good faith done or intended to be done in pursuance of this Act or of any rules or orders made thereunder.

59.

Act 8 of 1897 and certain provisions of Act 2 of 1974 not to apply.

(1)

The Reformatory Schools Act, 1897, and Section 27 of the Code of Criminal Procedure, 1973 (Act 2 of 1974) shall cease to apply to any area in which this Act has been brought into force.

(2)

The Women's and Children's Institutions (Licensing) Act, 1956, shall not apply to any children's home-cum-observation home or special school established and maintained under this Act.

60.

Power to make rules.

(1)

The State Government may, by notification in the Official Gazette, make rules to carry out the purpose of this Act.

(2)

In particular and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely-

(a)

the places at which, the days on which, the time at which, and the manner in which, a competent authority may hold its sittings;

(b)

the procedure to be followed by a competent authority in holding inquiries under this Act; and the mode of dealing with children suffering from dangerous disease of mental complaints;

(c)

the circumstances in which, and the conditions subject to which an institution may be certified as a special school or a children's home-cum-observation home, and the certification or recognition withdrawn;

(d)

the internal management of special should and children's home-cum-observation home and standards and the nature of services to be maintained by them;

(e)

the functions and responsibilities of special schools and children's home-cum-observation home;

(f)

the inspection of special schools, children's home-cum-observation home and after-care organisations;

(g)

the establishment, management and functions of after-care organisations; the circumstances in which and the conditions subject to which, an institution may be recognised as an aftercare organisation and such other matters as are referred to in Section 10;

(h)

the qualification and duties of probation officers;

(i)

the recruitment and training of persons appointed to carry out the purpose of this Act and the terms and conditions of their service;

(j)

the conditions subject to which a girl who is a neglected or delinquent child may be escorted from one place to another, and the manner in which a child may be sent outside the jurisdiction of a competent authority;

(k)

the manner in which contribution for the maintenance of a child may be ordered to be paid by a parent or guardian;

(l)

the conditions under which a child may be placed out on licence and the form and conditions of such licence;

(m)

the conditions subject to which children may be placed under the care of any parent, guardian or other fit person or fit institution under this Act and the obligations of such persons or institutions towards the children so placed;

(n)

any other matter which has to be, or may be prescribed.

(3)

Every rule made rule this Act shall be laid as soon as may be after it is made, before the Legislature Assembly while it is

in session for a total period of not less than fourteen days which may be comprised in one session or in two or more successive sessions and if, before the expiry of the sessions in which it is so laid or the successive session aforesaid the Legislative Assembly agree in making any modification in the rule or the Legislative Assembly agrees that the rule should not be made, the rule shall thereafter have effect only in such modified form or be of no effect as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

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